

Ashok v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 3 December 2024 · 2024:AHC:189442-DB · Writ - C No. 35835 of 2024 · **Disposed with liberty to invoke clause 6.5; brief stay; merits open.**

HEADNOTE

Petition to quash an electricity recovery citation disposed of, without examination of merits, with liberty to file within ten days a complaint or representation under clause 6.5 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer. If so filed, the representation is to be decided in accordance with that clause, and coercive action on the citation is stayed for four weeks or until disposal, whichever is earlier.

FACTUAL SUMMARY

Ashok sought a writ to quash a recovery citation dated 16 May 2024 issued by the Executive Engineer, Vidyut Vitaran Khand-III, Bisauli, Budaun, for electricity connection no. 761635024875, and to restrain recovery of Rs. 3,12,299. The writ was adjourned on 25 November 2024 for a week for instructions. On 3 December 2024 the Corporation told the Division Bench that the grievance could be redressed under clause 6.5 of the U.P. Electricity Supply Code, 2005, and the petitioner's counsel said the petitioner would avail that remedy if protected until a decision.

HOLDING-UNITS

HOLDING-UNIT · U.P. Electricity Supply Code, 2005, clause 6.5

disputed recovery citation — clause 6.5 representation

HOLDING

The writ is disposed of, without considering the petitioner's claim on merits, with liberty to file within ten days a fresh complaint or representation under clause 6.5 of the U.P. Electricity Supply Code, 2005 before respondent no. 3, the Executive Engineer, Vidyut Vitaran Khand-III, Bisauli, Budaun. If that remedy is invoked within ten days, the Executive Engineer shall decide it in accordance with clause 6.5, and no coercive action shall be taken on the recovery citation dated 16.05.2024 for four weeks or until disposal of the representation, whichever is earlier. ¶ 3-8

PRINCIPLE TAGS

clause-6.5-alternate-remedy The writ was disposed of without a decision on the recovery citation, the Corporation having submitted that the grievance could be redressed under clause 6.5 and the petitioner having agreed to avail that remedy. ¶ 3-5

clause-6.5-representation-executive-engineer Liberty was reserved to file the clause 6.5 complaint or representation within ten days before respondent no. 3, the Executive Engineer, Vidyut Vitaran Khand-III, Bisauli, Budaun. ¶ 5

clause-6.5-pending-representation-to-be-decided If the representation is filed within ten days, the Executive Engineer must decide it in accordance with clause 6.5 of the Supply Code. ¶ 6

para-6.5-objection-before-coercive-recovery Coercive action on the recovery citation dated 16.05.2024 was withheld for four weeks or until disposal of the clause 6.5 representation, whichever is earlier. ¶ 7

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY CITATION DATED 16.05.2024 FOR RS. 3,12,299 ON CONNECTION NO. 761635024875 IS LIABLE TO BE QUASHED

The Court expressly did not consider the petitioner's claim on merits. ¶ 8

